

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 22, Honorable Beth McGowen Presiding

Farris Bryant, Courtroom Clerk
191 North First Street, San Jose, CA95113
Telephone: (408) 882-2340

To contest a tentative ruling, you must:

1. Call (408) 808-6856 before 4:00 P.M. and leave a voicemail message containing the information described below, and
2. Notify the other side before 4:00 P.M. that you will appear at the hearing to contest the tentative ruling.

In the voicemail message, please state your case name, case number, the name of the attorney, who you represent (Plaintiff or specific defendant) and contact number. It would also be helpful if you could identify the specific portion or portions of the tentative ruling that will be contested.

PLEASE NOTE:

- If you do not notify the Court and/or opposing side as required by California Rule of Court, rule 3.1308(a)(1) and Civil Local Rule 8(E), the Court will not hear argument and the tentative ruling will be adopted even if all parties appear at the hearing.
- Sending an email to the department or to the Complex Clerk will no longer suffice to constitute notice to the Court of the need for a hearing regarding a tentative ruling.

Court Reporters are not provided. Please consult our Court's website, www.scscourt.org, for the rules, policies, and required forms for appointment by stipulation of privately-retained court reporters.

- **Parties can appear either in person or remotely.** All remote appearances must be made through UDC, unless otherwise arranged with the Court. Please go to <https://santaclara.courts.ca.gov/online-services/remote-hearings> to find the appropriate link. Also, please note that that you must register in advance to appear remotely.
- As a reminder, state and local Court Rules prohibit recording of court proceedings without a Court order. This prohibition applies while in the courtroom and while appearing remotely.

DATE: September 10, 2026 TIME: 1:30 P.M.

**PREVAILING PARTY SHALL PREPARE THE ORDER
UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	20CV373138	Envirodigm, Inc. v. Apple, Inc.	Hearing: Motion is GRANTED Tentative ruling under seal and provided to parties only
LINE 2	20CV373138	Envirodigm, Inc. v. Apple, Inc.	Motion: Seal Records
LINE 3	20CV373138	Envirodigm, Inc. v. Apple, Inc.	Motion: Seal Records
LINE 4	20CV373138	Envirodigm, Inc. v. Apple, Inc.	Motion: Seal Records
LINE 5	23CV428291	Salinas v. Giuliani Construction and Restoration, Inc. (PAGA)	Motion: Enforce Settlement is GRANTED and Request to Dismiss Claims in DENIED Click on line 5 for tentative ruling
LINE 6	24CV453093	Asefash Rivera vs Stanford Health Care	Hearing: Petition for Coordination is GRANTED Click on line 6 for tentative ruling
LINE 7	25CV469747	Nicole Yuen vs DEPOP, INC. (Class Action)	Hearing: Pro Hac Vice Application is APPROVED
LINE 8	25CV474024	Eric Koontz vs Cisco Systems, Inc.	Hearing: Motion For Approval of Settlement is GRANTED Click on line 8 for tentative ruling
LINE 9			
LINE 10			
LINE 11			
LINE 12			
LINE 13			

Calendar Lines 1-4

Case Name: *Envirodigm, Inc. v. Apple, Inc.*

Case No.: 20CV373138

The tentative ruling is provided to the parties only and will remain under seal.

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Calendar Line 2

Case Name:

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Case No.:

Calendar Line 5

Case Name: *Salinas, et al. v. Giuliani Construction and Restoration, Inc.*

Case No.: 23CV428291

This is a putative class and representative action under the Private Attorneys General Act (“PAGA”). Plaintiffs Guadalupe Salinas, Guadalupe Ramos Marquez, and Jose Antonio Ramirez Vecerra (collectively, “Plaintiffs”) allege defendant Giuliani Construction and Restoration, Inc. committed various wage and hour violations.

Before the Court is Defendant’s motion to enforce settlement, which is opposed. For reasons discussed below, the Court GRANTS Defendant’s motion to enforce the settlements and DENIES the request to dismiss the class and PAGA claims.

I. BACKGROUND

According to the allegations of the operative second amended complaint (“SAC”), Defendant failed to: provide compliant meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; maintain accurate payroll statements; provide complete and accurate wage statements; pay wages (overtime and minimum wages); pay sick wages; pay wages due upon termination; and reimburse for necessary business expenses.

On December 28, 2023, Plaintiff Salinas initiated this action with the filing of the Complaint and on September 10, 2024, Plaintiff Salinas filed the first amended complaint, which asserted the following causes of action: (1) PAGA penalties; (2) Failure to Pay Wages-Unpaid Commissions (Lab. Code §§ 204, 1194, 1194.2, and 1197); (3) Failure to Timely Pay Final Wages at Termination (Lab. Code §§ 201-203); (4) Failure to Provide Accurate Itemized Wage Statements (Lab. Code § 226); (5) Failure to Indemnify Employees for Expenditures (Lab. Code § 2802); (6) Unfair Business Practices (Bus. & Prof. Code §§ 17200, *et seq.*); and (7) Breach of Contract.

On October 29, 2025, Plaintiffs filed the operative SAC, which asserts the following causes of action: (1) Failure to Pay Minimum Wages (Lab. Code §§ 204, 1194, 1194.2, and 1197); (2) Failure to Pay Overtime Compensation (Lab. Code §§ 1194 and 1198); (3) Failure to Provide Meal Periods (Lab. Code §§ 226.7, 512); (4) Failure to Authorize and Permit Rest Breaks (Lab. Code §§ 226.7); (5) Failure to Indemnify Necessary Business Expenses (Lab. Code § 2802); (6) Failure to Timely Pay Final Wages at Termination (Lab. Code §§ 201-203); (7) Failure to Provide Accurate Itemized Wage Statements (Lab. Code § 226); (8) Unfair Business Practices (Bus. & Prof. Code §§ 17200, *et seq.*); (9) Civil Penalties Under PAGA (Cal. Lab. Code § 2698, *et seq.*); (10) Failure to Pay Wages – Unpaid Commissions (Cal. Lab. Code §§ 204, 1194, 1194.2, and 1197); (11) Failure to Timely Pay Final Wages at Termination (Cal. Lab. Code §§ 201-203); (12) Failure to Provide Accurate Itemized Wage Statements (Cal. Lab. Code § 226); (13) Failure to Indemnify Employees for Expenditures (Cal. Lab. Code § 2802); (14) Unfair Business Practices (Cal. Bus. & Prof. Code §§ 17200, *et seq.*); and (15) Breach of Contract.

Plaintiffs Ramos Marquez and Ramirez assert causes of action one through eight on a class basis; Plaintiffs Salinas and Ramirez assert the ninth cause of action for PAGA penalties; Plaintiff Salinas individually asserts causes of action ten through fifteen. On April 15, 2026,

the Court granted Plaintiffs' request to dismiss Plaintiffs Salinas and Ramos Marquez' individual claims without prejudice. Consequently, only the class allegations and representative PAGA allegations remain.

II. REQUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of the following items:

- (1) Plaintiff's SAC, filed on October 29, 2025: Exhibit A;
- (2) Plaintiffs' request for dismissal of individual class claims: Exhibit B;
- (3) The Court's Order granting Plaintiffs' request for dismissal: Exhibit C; and
- (4) Printout for search results for California Department of Industrial Relations PAGA Case Search accessed on May 4, 2026: Exhibit D.

Evidence Code section 452, subdivision (d), permits judicial notice of records of any court of this state or any court of record of the United States or of any state of the United States. (Code Civ. Proc., § 452, subd. (d).) Exhibits A-C are court records, therefore they are proper items of judicial notice. Thus, the Court takes judicial notice of the existence of the documents and the legal effect of the court orders but does not take notice of the truth of any disputed contents. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81.) With regard to Exhibit D, the Court will take judicial notice of only the existence of the document under Evidence Code section 452, subd. (h). Defendant's request for judicial notice is GRANTED.

III. MOTION TO ENFORCE SETTLEMENT

Defendant moves to enforce the settlement agreements with Plaintiffs.

A. Legal Standard

Code of Civil Procedure section 664.6 provides, "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) The purpose of section 664.6 is "to permit a court, via a summary proceeding, to finally dispose of an action when the existence of the agreement or the terms of the settlement are subject to reasonable dispute, something not permissible before the statute's enactment." (*Viejo Bancorp, Inc. v. Wood* (1989) 217 Cal.App.3d 200, 206.)

"*'If requested by the parties,' . . . 'the [trial] court may retain jurisdiction over the parties to enforce [a] settlement until performance in full of the terms of the settlement.'* (Code Civ. Proc., § 664.6, italics added.) 'Because of its summary nature, strict compliance with the requirements of section 664.6 is prerequisite to invoking the power of the court to impose a settlement agreement.' [Citations.]" (*Mesa RHF Partners, L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 917 (*Mesa*), italics in original.) "[T]he request for retention of jurisdiction must conform to the same three requirements which the Legislature and the courts have deemed necessary for section 664.6 enforcement of the settlement itself: the request must be made (1) during the pendency of the case, not after the case has been dismissed in its entirety,

(2) by the parties themselves, and (3) either in a writing signed by the parties or orally before the court.” (*Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 440.) “The request to the court that it retain jurisdiction under section 664.6 must be made by the parties. [Citation.]” (*Mesa, supra*, 33 Cal.App.5th at p. 918.)

The court may interpret the terms of the settlement agreement on a motion to enforce such an agreement. “[I]f the requirements of section 664.6 are met the trial court is authorized to resolve remaining questions of disputed fact or interpretation.” (*City of Fresno v. Maroot* (1987) 189 Cal.App.3d 755, 760, fn. 3.) “Section 664.6’s ‘express authorization for trial courts to determine whether a settlement has occurred is an implicit authorization for the trial court to interpret the terms and conditions to settlement.’” (*Skulnick v. Roberts Express, Inc.* (1992) 2 Cal.App.4th 884, 889.)

“In ruling on a motion to enter judgment [or to confirm settlement] the trial court acts as the trier of fact, determining whether the parties entered into a valid and binding settlement. Trial judges may consider oral testimony or may determine the motion upon declarations alone.” (*Terry v. Conlan* (2005) 131 Cal.App.4th 1445, 1454.) However, “[t]he power of the trial court under Code of Civil Procedure section 664.6...is extremely limited...[in that] nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (*Hernandez v. Board of Ed. Of the Stockton Unified School Dist.* (2004) 126 Cal.App.4th 1161, 1176, internal quotation marks and citations omitted). This is so because “[a] settlement agreement is simply a contract.” (*Ibid.*) Thus, “[t]he court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.” (*Ibid.*)

B. Discussion

In deciding a motion pursuant to section 664.6, a court may receive evidence, determine disputed facts including the terms the parties previously agreed upon, and enter the terms of a settlement agreement as a judgment, but may not create new material terms. (See *Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360.) Under California law, a contract will be enforced if it is sufficiently definite (and this is a question of law) for the court to ascertain the parties’ obligations and to determine whether those obligations have been performed or breached.” (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 209 (*Bustamante*), [internal quotation marks and citation omitted].) The modern trend is to favor holding settlement agreements enforceable notwithstanding claimed uncertainty unless the uncertainty prevents the court from knowing what to enforce. (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 736.)

In December 2025 and January 2026, the Chief Executive Officer (“CEO”) for Defendant, Anthony Giuliani, on his own accord, arranged meetings and negotiated settlements directly with all three named Plaintiffs. (Motion, p. 1: 19-21.) On December 11, 2025, he met with Plaintiff Vecerra and the parties agreed to settle for \$10,000 and they signed a written agreement that included a dismissal with prejudice and a release of Plaintiff Vecerra’s individual and PAGA claims. (Giuliani Declaration (“Decl.”), ¶¶ 3-5.) In January 2026, he met with Plaintiff Ramos Marquez and they reached a settlement of \$3,000. (Giuliani Decl., ¶ 6.) They signed the agreement on January 9, 2026, which included a release of his individual claims and an agreement to dismiss with prejudice. (Giuliani Decl., ¶¶ 7-9; Declaration of

Lindsey LaBelle (“LaBelle Decl.”), ¶¶ 3-4.) On January 13, 2026, Plaintiff Salinas signed the settlement agreement which resolved his claims for \$5,000, in exchange for a release of all his claims and his agreement to dismiss his action with prejudice. (Giuliani Decl., ¶¶ 11-13; LaBelle Decl., ¶¶ 6-7.) Defendant presents evidence that the settlement agreements were negotiated between Giuliani and the individual Plaintiffs—each Plaintiff was provided the opportunity to review the agreement and ask questions. Defendant fully performed by paying the agreed upon amounts. The agreements required Plaintiffs to dismiss their claims with prejudice, however, Plaintiffs’ counsel filed a request for dismissal of Plaintiffs Salinas and Ramos Marquez’s claims *without prejudice*.

While Plaintiffs mention that the settlement agreements “reek of bad faith,” they do not offer any actual argument or evidence on this point, therefore this argument is waived. (*See Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 (*Badie*) [“When [a party] fails to raise a point or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived.”])

Defendant provides a copy of each agreement. (See Declaration of Andrew Kozlow (“Kozlow Decl.”), ¶ 4, Exh. A.) Here, the parties agreed on all material settlement terms and there is no evidence to the contrary before the Court at this time, nor is there evidence to establish fraud, coercion, or duress. Thus, the Court finds that the parties entered into an enforceable agreement. (See *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182-1183.) Thus, based on the agreements, the motion to enforce settlement is GRANTED as to each Plaintiffs’ individual claims. Accordingly, Plaintiffs must dismiss their individual claims with prejudice.

However, the issue of whether the class and PAGA actions must be dismissed with prejudice remains and will be addressed by the Court below.

1. Dismissal of Class Claims

California Rule of Court, rule 3.770(a), requires court approval to dismiss a party in a class action once it is filed. (See Rules of Ct., Rule 3.770(a).) “Rule 3.770 provides that if the class action is dismissed prior to certification and/or notice, the action may be dismissed without notice to the class members if the court finds that the dismissal will not prejudice them.” (*Citizens of Humanity, LLC v. Ramirez* (2021) 63 Cal.App.5th 117, 124.) In a class action, the court must protect absent class members and may not allow their rights to be impaired by a settlement to which they were not parties to. (*Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 341.)

Here, Defendant does not make a sufficient showing that the class claims should be dismissed. Enforcement of the settlement agreements which require dismissal of individual claims does not automatically entitle Defendant to dismissal of the class claims. (See *La Sala v. Am. Sav. & Loan Ass’n* (1971) 5 Cal.3d 864, 871 [before class claims can be dismissed, the court must at least afford an opportunity to amend the complaint, redefine the class, or add a new representative plaintiff]; see also *Schoshinski v. City of Los Angeles* (2017) 9 Cal.App.5th 780, 801-802 [“The policy concerns underlying the ‘pick off’ exception are the desire to avoid ‘revolving door’ litigation, whereby the defendant uses a tactic to avoid a class action, to the detriment of putative class members who cannot afford to initiate or join a litigation, and inviting a wage of judicial resources.”].) Moreover, approval of dismissal of an entire class action under rule 3.770(a), requires a declaration which clearly states, “whether consideration,

direct or indirect, is being given for the dismissal and must describe the consideration in detail.” (Rules of Ct., Rule 3.770(a).) Here, no such declaration has been filed. Therefore, to the extent Defendant requests dismissal of the class claims, the request is DENIED.

2. Dismissal of PAGA Claims

Defendant argues that with the release of Plaintiff Salinas’ and Plaintiff Ramirez Vecerra’s individual PAGA claims, there is no “aggrieved employee” with standing to maintain a representative action.

Under the pre-amendment statute, PAGA standing required only that a person was employed by the alleged violator and that it was against who one or more violations were committed. (See *Kim v. Reins Internat. Cal.* (2020) 9 Cal.5th 73, 83-84 (*Kim*).) For PAGA notices filed on or after June 19, 2024, the amended PAGA statute defines an aggrieved employee as a person who was employed by the alleged violator and personally suffered each of the violations alleged in the relevant period. (Labor Code § 2699, subd. (c)(1).)

In *Kim, supra*, the court held that the resolution of an employee’s individual claims does not strip that employee of standing pursuant to PAGA remedies and does not eliminate court and LWDA review pursuant to Labor Code section 2699, subdivision (1)(2). Contrary to Defendant’s assertion, the holding in *Kim*, was not limited to settlement agreements that included carve-outs for representative claims. Plaintiff Ramirez Vecerra filed his notice on August 4, 2024, thus the amended statute applies. Here, the Court is persuaded by Plaintiff’s argument that the resolution of Plaintiff Ramirez Vecerra’s individual claims does not eliminate the injury that conferred standing. Moreover, the language of his settlement agreement released “all of his alleged wage and hour claims,” however, the language does not release representative claims. Thus, to the extent Defendant request dismiss of Plaintiff Ramirez Vecerra’s representative PAGA claims, it is DENIED.

Plaintiff Salinas filed his notice prior to June 19, 2024, thus the pre-amendment statute governs. Settlement of Plaintiff Salinas’ individual claims does not erase the injury to support standing and a plaintiff who settled all individual claims still retains PAGA standing. (See *Kim, supra*, 9 Cal.5th at pp. 83-84; *Parsonage v. Wal-Mart Associates, Inc.* (2026) 118 Cal.App.5th 399, 421.) As with Plaintiff Ramirez Vecerra, Plaintiff Salinas’ settlement agreement did not include a release of representative PAGA claims. Thus, Defendant does not establish a basis for dismissal of his representative PAGA claims. Accordingly, to the extent Defendant requests dismissal of Plaintiff Salinas’ representative PAGA claim, it is DENIED.

IV. CONCLUSION

Defendant’s motion to enforce Plaintiffs’ respective settlement agreements is GRANTED. Defendant’s request to dismiss Plaintiffs’ class and PAGA claims is DENIED.

The Court will prepare the order.

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Calendar Line 6

Case Name: *Asefash Rivera v. Stanford Health Care*

Case No.: 24CV453093

This is a putative class and representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Asefash Rivera alleges that defendant Stanford Health Care committed various wage and hour violations.

Before the Court is Defendant’s petition for coordination and motion to stay proceedings, which is unopposed. For reasons discussed below, the Court GRANTS the motion.

V. BACKGROUND

According to the allegations of the operative first amended complaint (“FAC”), Plaintiff worked as a Clinical Assistant/Medical Assistant/Patient Care Coordinator on an hourly, non-exempt basis. (FAC, ¶ 9.) Defendant failed: pay all wages owed, including minimum and overtime wages; provide compliant meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; provide complete and accurate wage statements; timely pay wages; provide suitable resting facilities; and reimburse for necessary business expenses. (FAC, ¶¶ 18-26.)

Plaintiff initiated this action on December 2, 2024, with the filing of the Complaint and on January 6, 2025, she filed the operative FAC, which asserts the following causes of action: (1) failure to pay for all hours worked, including overtime hours worked; (2) failure to pay all wages owed twice per month; (3) failure to pay minimum wage; (4) rest break violations; (5) meal break violations; (6) failure to reimburse for required business expenses; (7) failure to provide accurate itemized wage statements & violation of record keeping requirements; (8) unlawful business practices; and (9) PAGA penalties.

VI. PETITION FOR COORDINATION

Defendant moves to coordinate the following cases:

- (1) *Asefash Rivera v. Stanford Health Care* (24CV453093) (*Rivera*), filed in Santa Clara County Superior Court on December 2, 2024;
- (2) *Joanne Ibay v. Stanford Health Care* (25CV477482) (*Ibay* Class Action), filed in Santa Clara County Superior Court on October 13, 2025;
- (3) *Jade Capwell v. Stanford Health Care* (26CV485505) (*Capwell*), filed in Santa Clara County Superior Court on January 26, 2026;
- (4) *Joanne Ibay v. Stanford Health Care* (26CV485937) (*Ibay* PAGA Action), filed in Santa Clara County Superior Court on February 2, 2026; and,
- (5) *Melissa Hirabayashi, et al. v. Stanford Health Care* (26-CIV-00864) (*Hirabayashi*), filed in San Mateo County Superior Court on February 4, 2026.

C. Legal Standard

California Rules of Court, rule 3.400, subdivision (a), defines a “complex case” as “an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel.”

In deciding whether an action is a complex case under (a), the court must consider, among other things, whether the action is likely to involve:

- (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve;
- (2) Management of a large number of witnesses or a substantial amount of documentary evidence;
- (3) Management of a large number of separately represented parties;
- (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or
- (5) Substantial postjudgment judicial supervision.

(California Rules of Court, rule 3.400, subdivision (b).) Title 3, Division 4, Chapter 7 of the California Rules of Court (i.e., rules 3.501 through 3.550) provides for the coordination of complex actions.

Code of Civil Procedure section 404, provides, “[w]hen civil actions sharing a common question of fact or law are pending in different courts, a petition for coordination may be submitted to the Chairperson of the Judicial Council, by the presiding judge of any such court, or by any party to one of the actions after obtaining permission from the presiding judge, or by all of the parties plaintiff or defendant in any such action. A petition for coordination, or a motion for permission to submit a petition, shall be supported by a declaration stating facts showing that the actions are complex, as defined by the Judicial Council and that the actions meet the standards specified in Section 404.1. On receipt of a petition for coordination, the Chairperson of the Judicial Council may assign a judge to determine whether the actions are complex, and if so, whether coordination of the actions is appropriate, or the Chairperson of the Judicial Council may authorize the presiding judge of a court to assign the matter to judicial officers of the court to make the determination in the same manner as assignments are made in other civil cases.” (Code of Civ. Proc., § 404.)

“Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account” the following factors: “whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel; the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied.” (Code Civ. Proc., § 404.1 (“Section 404.1”); see also California Rules of Court, rule 3.521 [setting forth the requirements for a petition for coordination].) The trial court exercises its discretion in weighing and balancing these factors to determine whether coordination best serves the ends of justice in a particular case. (*Pesses v. Superior Court (Pacific Southwest Airlines)* (1980) 107 Cal.App.3d 117, 125-126.)

D. Discussion

Defendant is the sole defendant in the aforementioned actions. All the actions are wage and hour cases with common facts and overlapping legal issues. Additionally, each action is in the early stages with discovery just beginning or being stayed.

Here, each of the actions has been deemed complex by the respective courts. They are putative class actions, representative PAGA actions, or both. *Rivera* is a putative class and representative PAGA action, which asserts nine causes of actions, including one for PAGA penalties and the remaining for various Labor Code violations. The *Ibay* Class Action asserts eleven causes of action consisting of nine claims for Labor Code violations, one for discrimination and retaliation in violation of the Fair Employment and Housing Act, and one for constructive discharge and other adverse employment actions in violation of public policy. *Capwell* is a putative class action, which asserts nine causes of action consisting of eight claims for Labor Code violations and one for unfair competition. The *Ibay* PAGA Action seeks PAGA penalties. *Hirabayashi* is a putative class and representative PAGA action, which asserts seven causes of action, six for various Labor Code violations and one for PAGA penalties.

It is clear that common questions of law and fact predominate the actions because each of the actions assert wage and hour claims that cover overlapping groups of employees. Next, Defendant argues that the convenience of the parties, witnesses, and counsel would be served by coordination because due to the overlapping nature of the actions, Defendant will have to respond to identical or largely similar discovery, produce the same documents such as payroll and timekeeping dates, offer the same witnesses to testify about the same issues in each action, and participate in similar motion practice. The Court agrees, given the overlapping nature of the claims and legal questions, it would be more convenient for the parties, witnesses and counsel for the matters to be coordinated.

As noted above, all of the action are in the early stages with discovery just starting or being stayed. Thus, none of the cases have progressed much further ahead than any other case. Coordination at this time will minimize the extent to which the parties will have to conduct the same discovery, same motion practice, and encounter the same issues across the cases. As to the utilization of judicial facilities and manpower, here, coordination will reduce the burden on multiple courts, and it will avoid the need for several hearings on the issues. Similarly, coordination will avoid duplicative and inconsistent rulings on similar issues. Lastly, Defendant contends that coordination will provide the best opportunity for an orderly and efficient resolution. Plaintiffs failed to oppose the instant motion.

Upon full consideration, the Court finds that the section 404.1 factors weigh in favor of coordination. Accordingly, Defendant's petition is GRANTED.

VII. CONCLUSION

Defendant's petition for coordination of the included actions is GRANTED, and the Court orders the actions coordinated.

Considering the factors listed in California Rules of Court, rule 3.530(b) this court recommends Santa Clara County Superior Court as the site of the coordination proceedings.

The Court of Appeal, Sixth Appellate District, is designated the reviewing court having appellate jurisdiction.

Pursuant to California Rules of Court, rule 3.529(a), Defendant must “promptly file the order in each included action, serve it on each party appearing in an included action, and submit it to the Chair of the Judicial Council.

The Court will prepare the order.

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Calendar Line 7

Case Name:

Case No.:

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Calendar Line 8

Case Name: *Eric Koontz v. Cisco Systems, Inc.*

Case No.: 25CV474024

This is a representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Eric Koontz alleges defendant Cisco Systems, Inc. committed various wage and hour violations.

Before the Court is Plaintiff’s motion for approval of PAGA settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

VIII. BACKGROUND

According to the allegations of the operative Complaint, Plaintiff was employed by Defendant from 2005 to September 2024. (Complaint, ¶ 1.) As a condition of employment, Defendant required its employees to sign and abide by the terms of its Proprietary Information and Inventions Assignment Agreement (the “PIIA”). (Complaint, ¶ 8.) Plaintiff was required to sign the Agreement and continues to be bound by its terms. (Complaint, ¶¶ 9-13.) Defendant violated Labor Code section 923 and 232 by requiring employees to sign the Agreement, as a condition of employment. (Complaint, ¶¶ 17.)

Based on the foregoing, Plaintiff initiated this action on August 29, 2025, which asserts a single cause of action for PAGA penalties.

Plaintiff now moves for an order approving the Settlement Agreement (the “Settlement”).

IX. LEGAL STANDARD FOR APPROVING PAGA SETTLEMENT

Under PAGA, an aggrieved employee may bring a civil action personally and on behalf of other current or former employees to recover civil penalties for Labor Code violations. (*Iskanian v. CLS Transp. Los Angeles, LLC* (2014) 59 Cal.4th 348, 380, overruled on other grounds by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639 [2022 U.S. LEXIS 2940].) 75 percent of any penalties recovered go to the Labor and Workforce Development Agency (LWDA), leaving the remaining 25 percent for the employees. (*Ibid.*) PAGA is intended “to augment the limited enforcement capability of [LWDA] by empowering employees to enforce the Labor Code as representatives of the Agency.” (*Id.* at p. 383.) A judgment in a PAGA action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government. (*Id.* at p. 381.)

Labor Code section 2699, subdivision (l)(2) provides that “[t]he superior court shall review and approve any settlement of any civil action filed pursuant to” PAGA. The court’s review “ensur[es] that any negotiated resolution is fair to those affected.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.) “[C]lass certification is not required” in this context as in a class action. (*Haralson v. U.S. Aviation Servs. Corp.* (N.D. Cal. 2019) 383 F. Supp. 3d 959, 971 (*Haralson*).)

Similar to its review of class action settlements, the Court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77 (*Moniz*)). It must make this assessment “in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (*Id.* at p. 77; see also *Haralson, supra*, 383 F. Supp. 3d at p. 971 [“when a PAGA claim is settled, the relief provided for under the PAGA [should] be genuine and meaningful, consistent with the underlying purpose of the statute to benefit the public”], quoting LWDA guidance discussed in *O’Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110 (*O’Connor*)).

The settlement must be reasonable in light of the potential verdict value. (See *O’Connor, supra*, 201 F.Supp.3d at p. 1135 [rejecting settlement of less than one percent of the potential verdict].) But a permissible settlement may be substantially discounted, given that courts often exercise their discretion to award PAGA penalties below the statutory maximum even where a claim succeeds at trial. (See *Viceral v. Mistras Group, Inc.* (N.D. Cal., Oct. 11, 2016, No. 15-CV-02198-EMC) 2016 WL 5907869, at *8–9.)

X. PLAINTIFF’S INVESTIGATION, SETTLEMENT PROCESS, AND THE PARTIES’ AGREEMENT

On June 17, 2025, Plaintiff submitted written notice to the Labor and Workforce Development Agency (“LWDA”) and Defendant. On August 29, 2025, Plaintiff initiated this action. In September 2025, Defendant filed a notice of appearance, and the Court deemed the case complex. Subsequently, the parties met and conferred about this action and they agreed to participate in mediation.

Over the next few months, the parties exchanged informal discovery and Defendant produced: (1) all versions of the PIIA that had been in effect since 2017; (2) data regarding the numbers of active and former employees who were employed during the one-year PAGA statute of limitations period and the specific numbers of pay periods worked by employees under each iteration of the PIIA; (3) the materials submitted to all 15,696 active employees on August 11, 2025 that Defendant maintains sufficiently cured any potential Labor Code violations asserted by Plaintiff; and (4) a declaration form a company management attesting to the manner and means of distribution the curative materials to active employees.

On December 9, 2025, the parties attended mediation with Antonio Piazza and they reached an agreement in principle. Over the next two months, the parties negotiated the terms and in February 2026, they executed the Agreement currently before the Court.

Pursuant to the Settlement, Defendant will pay a non-reversionary gross settlement amount of \$1,200,000, which is comprised of attorneys’ fees of up to \$400,000 (or one-third of the gross settlement amount), up to \$25,000 in litigation costs, and up to \$45,000 administration costs. The net settlement amount (\$725,000) will be distributed 65% (\$471,250) to the LWDA and 35% (\$253,750) to “Settlement Group Members,” who are defined as “all current and former employees who worked for Cisco in California at any time from June 24, 2024 through the date of the Approval Order and Judgment.” The average PAGA payment will be approximately \$15. Plaintiff will request a service award in the amount of \$10,000. Funds

associated with checks uncashed after 180 days will be transmitted to the State Controller's Unclaimed Property Fund in the name of the Settlement Group Member.

In exchange for settlement, Settlement Group Members will release:

[A]ny and all claims under PAGA for civil penalties against Cisco and the Released Parties that arise out of or reasonably relate to the allegations in the notice submitted by Plaintiff to the LWDA and/or the Complaint, including the allegations that, during the PAGA Period, Cisco required, as a condition of employment, that employees refrain from disclosing the amount of wages or other working conditions, required employees to sign a waiver or other document purporting to deny them the right to disclose the amount of wages or other working conditions, and/or required employees to agree in writing to a term or condition known by Cisco to be prohibited by law.

The release is appropriately tailored to the allegations at issue, and does not release any claims other than those for PAGA penalties. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 537; *Moniz, supra*, 72 Cal.App.5th at p. 82 [release of "all known and unknown claims under PAGA ... that were or could have been pled based on the allegations of the Complaint" was appropriately approved].)

XI. DISCUSSION

A. Potential Verdict Value

In the Complaint, Plaintiff alleges that employees were required to sign the PIIA as a condition of employment in violation of the Labor Code. Plaintiff's counsel estimates Defendant's maximum exposure as \$90,604,100, which is based on \$100/each employee per pay period x 906,041 workweeks.¹ However, Plaintiff's counsel states that there are multiple outcomes in this action including a scenario where Defendant's maximum exposure is less (or even) \$0, if Defendant is found to have cured the alleged violations and one where the maximum exposure is \$27,181,230, based only on prospective compliance.

Plaintiff's counsel contends that Defendant's maximum exposure is closer to \$0 than to \$90,604,000 for the following reasons: there is a substantial risk that a court could find Defendant sufficiently cured any potential Labor Code violations before the present lawsuit was filed; even if Defendant did not sufficiently cure past alleged violations, a court could find that it took "all reasonable steps" to be in prospective compliance by utilizing an updated PIIA for all new-hires that corrects the alleged unlawful provisions; and independent of the effect of Defendant's efforts to cure, there are risks as to the underlying merits of the alleged violations that could preclude or drastically reduce the recovery of civil penalties. Additionally, Plaintiff counsel also considered the fact that the alleged violations do not involve underpayment of wages and Defendant has attempted to cure so it is likely that a court would exercise its discretion to reduce any penalties awarded.

¹ Plaintiff's damages analysis determined that employees worked 459,628 pay periods while subject to a version of the PIIA that includes a non-solicitation provision that allegedly violates the Labor Code and 446,413 pay periods while subject to a version of the PIIA that includes a non-disclosure provision that allegedly violates the Labor Code for a total of 906,041 pay periods at issue.

The gross settlement amount represents approximately 1.32% of the higher range of maximum exposure and it represents 4.4% of the lower figure provided. While this is below the percentage range typically approved by courts (see *Cavazos v. Salas Concrete, Inc.* (E.D. Cal., Feb. 18, 2022, No. 1:19-cv-00062-DAD-EPG) 2022 U.S. Dist. LEXIS 30201, at *41-42 [citing cases approving settlements in the range of 5 to 35 percent of the maximum potential exposure]), some courts have approved settlements with lower recoveries for PAGA penalties. (See *Merante v. Am. Inst. for Foreign Study, Inc.*, (N.D. Cal. July 25, 2022) 2022 U.S. Dist. LEXIS 131833 at * 6 [approved a settlement amount between 0.27% and 2% of the maximum PAGA exposure]; *Hamilton v. Juul Labs, Inc.* (N.D. Cal. Nov. 16, 2021) 2021 U.S. Dist. LEXIS 221416 at * 10 [approved of PAGA settlement of 2.2% of the maximum PAGA exposure].)

Based on the foregoing, as well as the risks attendant to proceeding to trial, the range of potential liability, Defendant's defenses, and the likelihood that PAGA penalties would be significantly reduced in line with numerous appellate decisions, the Court finds that the proposed settlement is fair to those affected and is genuine, meaningful, and reasonable in light of the statute's purposes.

B. Attorneys' Fees

While the PAGA statute does not expressly require judicial review of claimed attorney fees, the Court believes it cannot adequately fulfill its statutory duty to review the penalties associated with PAGA settlements without also considering attorney fees. The Court thus finds that it must scrutinize the attorney fee arrangement associated with a PAGA settlement. This is consistent with the observation of many courts that PAGA claims are analogous to "*qui tam*" suits like those under the federal False Claims Act: when reviewing settlements of *qui tam* claims, courts should and do consider any associated attorney fee arrangement. (See *U.S. v. Texas Instruments Corp.* (9th Cir. 1994) 25 F.3d 725, 728 [attorney fee award must be considered by the trial court as part of its review of the "entire settlement arrangement"].)

As articulated above, Plaintiff seeks a fee award of \$400,000 in attorneys' fees. Plaintiff's counsel lodestar figure is \$249,200 based on 321 hours worked at billing rates ranging from \$750 to \$800. 214,165.00 based on 305.1 hours at billing rates of \$750 to \$800 per hour, resulting in a multiplier of 1.60. This is within the range of multipliers that courts typically approve. (See *Laffitte v. Robert Half Intern. Inc.* (2016) 1 Cal.5th 480, 488, 503–504 (*Laffitte*) [trial court did not abuse its discretion in approving fee award of 1/3 of the common fund, cross-checked against a lodestar resulting in a multiplier of 2.03 to 2.13]; *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 255 ["[m]ultipliers can range from 2 to 4 or even higher"]; *Vizcaino v. Microsoft Corp.* (9th Cir. 2002) 290 F.3d 1043, 1051, fn. 6 [stating that multipliers ranging from one to four are typical in common fund cases and citing the court's own survey of large settlements finding "a range of 0.6–19.6, with most (20 of 24, or 83%) from 1.0–4.0 and a bare majority (13 of 24, or 54%) in the 1.5–3.0 range"].)

Here, given the work performed by Plaintiff's counsel, and because the requested multiplier sought is within the range of multipliers regularly approved by California courts in similar actions and that it is supported by Plaintiff's counsel's declaration, the Court finds counsel's requested fee award is reasonable and therefore it is approved.

C. Plaintiff's Service Award, Other Costs and Expenses

Plaintiff requests a Class Representative Enhancement payment of \$10,000.

The rationale for making enhancement or incentive awards to named plaintiffs is that they should be compensated for the expense or risk they have incurred in conferring a benefit on other members of the class. An incentive award is appropriate if it is necessary to induce an individual to participate in the suit. Criteria courts may consider in determining whether to make an incentive award include: 1) the risk to the class representative in commencing suit, both financial and otherwise; 2) the notoriety and personal difficulties encountered by the class representative; 3) the amount of time and effort spent by the class representative; 4) the duration of the litigation and; 5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. These "incentive awards" to class representatives must not be disproportionate to the amount of time and energy expended in pursuit of the lawsuit.

(*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1394-1395, internal punctuation and citations omitted.) Incentive awards are particularly appropriate where a plaintiff undertakes a significant reputational risk in bringing an action against an employer. (*Covillo v. Specialty's Café* (N.D. Cal. 2014) 2014 U.S. Dist. LEXIS 29837, at *29.)

Plaintiff submitted a declaration in support of the request. Plaintiff states he has spent approximately 25 hours on the instant matter, which includes: meeting with Plaintiff's counsel to discuss the facts involved in this case; gathering and reviewing documents related to the case; identifying potential witnesses; and communicating regularly with counsel. (Plaintiff's Declaration ("Decl."), ¶¶ 8-10.) Plaintiff further states that he considered the personal and professional risk of participating in this action. (Plaintiff's Decl., ¶¶ 6-7.) The Court finds Plaintiff is entitled to a service award and the amount requested is reasonable, therefore the request is approved.

Plaintiff's counsel requests litigation costs in the amount of \$21,677.47. This is supported by the declaration of Plaintiff's counsel and it is below the \$25,000.00 provided for in the Settlement. Thus, this amount appears reasonable and is approved.

Administration costs of \$40,000 are also approved.

XII. ADMINISTRATION PROCESS

Pursuant to the terms of the Settlement, within 30 days of Court approval of its terms, Defendant will provide settlement administrator Phoenix Class Action Administration Solutions ("Phoenix") with the Settlement Group Information. Within 3 days of the Settlement becoming final, Phoenix will provide Defendant with wire transfer information and no later than 20 days from that date, Defendant will fully fund the Settlement. Within 10 days of Defendants funding the gross settlement amount, Phoenix shall mail the checks for individual PAGA payments, the LWDA PAGA payment, the service award, the administration expenses payment, and the payments counsel and litigation costs payments. Phoenix shall conduct an address search for all Settlement Group Members whose checks are returned and it must re-mail the check within 7 days. Funds associated with checks uncashed after 180 days shall be

transmitted to the State Controller's Unclaimed Property Fund. These administrative procedures are appropriate and are approved.

XIII. ORDER AND JUDGMENT

Plaintiff's motion for approval of the parties' PAGA settlement is GRANTED. The covered individuals are: All current and former employees who worked for Cisco in California at any time from June 24, 2024 through the date of the Approval Order and Judgment

Judgment shall be entered through the filing of this order and judgment. (Code Civ. Proc., § 668.5.) Plaintiff and Settlement Group Members shall take from the PAGA claim in their operative pleading only the relief set forth in the parties' settlement agreement and this order and judgment. The Court retains jurisdiction over the parties to enforce the terms of the PAGA settlement agreement and the final order and judgment.

The Court sets a compliance hearing for **May 13, 2027 at 2:30 P.M.** in Department 22. At least ten court days before the hearing, Plaintiff's counsel and the settlement administrator shall submit a summary accounting of the net settlement fund identifying distributions made as ordered herein; the number and value of any uncashed checks; amounts remitted the *cy pres* recipient; the status of any unresolved issues; and any other matters appropriate to bring to the Court's attention. Counsel may appear at the compliance hearing remotely.

The Court will prepare the order.

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